Program Name: Fatburger

Program ID : PRG-1008864

Effective Dates: January 1, 2015 through December 31, 2015
Price Type: Rebate
Print Date: December 9, 2014

We are pleased to confirm pricing information for orders requested for delivery between January 1, 2015 and December 31, 2015 for the below named operators. During this time period, orders placed by operators through your authorized distributor will be priced by Kraft to your authorized distributor at a maximum of the rebate type for the product(s) found in the pricing table (showing prices, allowance and contract volume).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Howard Gasser

Kraft Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0200869153	FATBURGER	301 ARIZONA AVE STE 200 SANTA MONICA CA 90401-1364

List of Authorized Distributors

Customer Number	Company Name	Address
0200982742	HFM FOODSERVICE	716 UMI ST HONOLULU HI 96819-2337
0200888264	HFM FOODSERVICE	HONOLULU HI 96808-0855
0200003586	PERFORMANCE FOODSRV AFI	1 IKEA DR ELIZABETH NJ 07201-2967
0100017553	PERFORMANCE FOODSRV ROMA NEW JERSEY	301 HERON DR SWEDESBORO NJ 08085-1773
0200376264	PFG CDC NEW JERSEY	500 HIGHLAND DR WESTAMPTON NJ 08060-5104
0100008188	RASTELLI GLOBAL COMMERCIAL	504 SHARPTOWN RD SWEDESBORO NJ 08085-3161
0200761640	RASTELLI GLOBAL TRADING	504 SHARPTOWN RD SWEDESBORO NJ 08085-3161
0200017860	SYSCO DENVER	5000 BEELER ST DENVER CO 80238-2975
0200053538	SYSCO DETROIT	41600 VAN BORN RD CANTON MI 48188-2746
0200146578	SYSCO FS DENVER/NOBEL-P/L	1101 W 48TH AVE DENVER CO 80221-1540
0200895249	SYSCO LAS VEGAS	6201 E CENTENNIAL PKWY LAS VEGAS NV 89115-1775
0200033946	SYSCO LOS ANGELES	20701 CURRIER RD WALNUT CA 91789-2904
0100026939	SYSCO RIVERSIDE	15750 MERIDIAN PKWY RIVERSIDE CA 92518
0200779886	SYSCO SACRAMENTO	7062 PACIFIC AVE PLEASANT GROVE CA 95668-9731
0200022970	SYSCO SEATTLE	22820 54TH AVE S KENT WA 98032-1813
0200023039	US FOODS, INC ARIZONA (4I)	4650 W BUCKEYE RD PHOENIX AZ 85043-4907
0100001059	US FOODS, INC METRO NEW YORK (2I)	1051 AMBOY AVE PERTH AMBOY NJ 08861-1919
0200045708	US FOODS, INC NORTHWEST (4Q)	2204 70TH AVE E STE 100 FIFE WA 98424-3612
0200051475	USF METRO NY/ENGLEWOOD	360 S VAN BRUNT ST ENGLEWOOD NJ 07631-4686

PRG-1008864 - Rebate

SCC#	Product Description	Rebate Pays To: Distributor
00544000000100	A1 2/1GL STEAK SAUCE	$2.00 / CS
00544000000200	A1 12/10Z STEAK SAUCE	$1.00 / CS
07592836003600	BOCA 48/5Z ORIG VEG BURGER	$4.35 / CS
07592836003800	BOCA 48/5Z ALL AMER BURGER	$4.35 / CS

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.